BHASKAR PAUL



Local Self Government

In 1993, the Indian Parliament passed the 73rd and 74th amendments to the Constitution, mandating the creation of elected local governments at the municipal (urban) and panchayat level. Thirty years later, there is limited political and bureaucratic will to empower local governments with powers and resources, except in some states, notably Kerala. But the presence of 3.2 million elected local government representatives, one-third of them women, cannot be rolled back. A constitutional sanction to include citizens in planning and decision-making through the gram sabha (rural) and ward sabha (urban) holds the possibilities of realising genuine people's power. Despite its apparent flaws, this remains the world's most audacious experiment yet in grassroots democracy.

ANI



Right to Information

Passed by Parliament in 2005, the RTI was a landmark legislation in the pursuit of deeper transparency and accountability in the Indian state. The result of sustained and powerful civic activism, this Act is a radical interpretation of information as a 'right' that is central to citizens' struggles for equality and justice. It is globally recognised as one of the most powerful interpretations (and legislations) of the freedom of information.

Rights-based Welfare

In the 2000s, Parliament enacted a slew of legislations—the right to work, realised via the Mahatma Gandhi National Rural Employment Guarantee Act, 2006; the Forest Rights Act, 2006; and the right to food via the National Food Security Act, 2013—that laid the foundation of a rights-based welfare state. The power of rights legislation lies not just in the specific entitlements but in the imagination of welfare that underpinned them. Legalising basic welfare entitlements is a means of empowering citizens to place claims and demand accountability, distinct from the '*mai-baap sarkar*' of yore. The laws trace their roots to civil society and judicial activism and are emblematic of the power of social movements in shaping welfare.

PURUSHOTTAM DIWAKAR

